

REQUEST FOR PROPOSALS

Consulting Services

-

Enterprise AI Adoption & Enablement**RFP 739-SL3821039**

Due Date: September 21, 2026

Proposals must be time stamped by the Texas Tech University Health Sciences Center Purchasing Office before the hour and date specified for receipt of solicitation.

Pursuant to the provisions of Texas Government Code Title 10 Subtitle D Chapter 2156.121 - 2156.127, General Services Act rules and regulations adopted there under, sealed proposals will be received until the date and time established for receipt. After receipt, only the names of proposers will be made public. Prices and other proposal details will only be divulged after the award, if one is made.



Abilene



Amarillo



Dallas/Fort Worth



Lubbock



Permian Basin



SUBMITTAL CHECKLIST

Due Date: September 21, 2026

Request Number:	RFP 739-SL3821039
Vendor Name:	
Contact Name:	
Phone Number:	
Contact E-Mail:	

Check-off

1. ☐ Signed and Completed Execution of Offer (ref Appendix B).
2. ☐ Signed and Completed VetHUB Subcontracting Plan (ref Appendix C).
3. ☐ Signed and Completed Addenda Checklist (ref Appendix D).
4. ☐ Responses to questions and requests for information in the Specifications and Scope of Work Section (ref Section 5).
5. ☐ Signed and Completed Pricing Schedule (ref Section 6).
6. ☐ Deliver Proposal to:

TTUHSC prefers that all proposals be submitted using the TechBid system
(<https://bids.scquest.com/apps/Router/PublicEvent?CustomerOrg=TexasTech>).

Or Mailed To:

Texas Tech University Health Sciences Center
Purchasing Office
3601 4th Street STOP 6217
Lubbock, Texas 79430



TABLE OF CONTENTS

Section 1: General Information	
	1.1 Introduction 1.2 Description of Texas Tech University Health Sciences Center 1.3 Group Purchase Authority 1.4 TTUHSC's Right to Reject 1.5 Public Information 1.6 Inquiries and Interpretations
Section 2: Notice to Proposer	
	2.1 Submittal Deadline 2.2 TTUHSC Contact Person 2.3 Key Events Schedule 2.4 Anticipated Term
Section 3: Proposal Submission Procedures	
	3.1 Number of Copies 3.2 Submittal Instructions for Online (TechBid) Proposals 3.3 Submittal Instructions for Mailed/Delivered Proposals (<i>Not required if submitted online</i>) 3.4 Proposal Validity Period 3.5 Terms and Conditions 3.6 Alternate Proposals 3.7 VetHUB Subcontracting Plan
Section 4: Evaluation Criteria and Award	
	4.1 Evaluation Process 4.2 Proposer's Acceptance of Evaluation Methodology 4.3 Evaluation Criteria and Weights 4.4 Consideration of Additional Information 4.5 Oral Presentations/Interviews 4.6 Award Process 4.7 Best and Final Offer 4.8 Award of Agreement
Section 5: Specifications and Scope of Work	
	5.1 General 5.2 Minimum Requirements 5.3 Additional Requirements Specific to this RFP 5.4 Services Specifications
Section 6: Pricing Schedule	
	6.1 Pricing for Services Offered 6.2 TTUHSC's Payment Terms
Section 7: General Terms and Conditions	
	- Appendix A: Agreement - Appendix B: Execution of Offer - Appendix C: VetHUB Subcontracting Plan - Appendix D: Addenda Checklist - Appendix E: TTUHSC Vendor Information



SECTION 1 GENERAL INFORMATION

1.1 Introduction

The Texas Tech University Health Sciences Center (“TTUHSC”), a part of the Texas Tech University System, seeks proposals from qualified firms for Consulting Services - Enterprise AI Adoption & Enablement (the “Services”). The Services are more specifically described in Section 5.4 entitled Service Specifications.

1.2 Description of Texas Tech University Health Sciences Center

TTUHSC has as its major objectives the provision of quality education and development of academic, research, patient care, and community service programs to meet the health care needs of West Texas, which in total is comprised of 108 counties and represents 50% of Texas’ land mass and 11% of its total population. This 131,000 square mile service area and population of 2.7 million has been, and remains highly underserved by health professionals and accessible health care facilities, despite the substantial and meaningful contribution made by our institution. While education of students and residents remains the primary focus of the institution, there has been an important impact on the health status of West Texas.

Please visit the campus web sites for more information:

- [Abilene campus](#)
- [Amarillo campus](#)
- [Dallas/Fort Worth campus](#)
- [Lubbock campus](#)
- [Permian Basin campus](#)

[TTUHSC Fact Book](#)

1.3 Group Purchasing Authority

Texas law authorizes institutions of higher education (defined by Section 61.003, Education Code) to use the group purchasing procurement method (ref. Sections 51.9335, 73.115, and 74.008, Education Code). Additional Texas institutions of higher education may therefore elect to enter into a contract with the successful Proposer under this RFP.

1.4 TTUHSC’s Right to Reject

This RFP does not commit TTUHSC to select a proposer or to award an agreement to any proposer. TTUHSC reserves the right to accept or reject, in whole or in part, any proposal it receives pursuant to this RFP. Proposals which are qualified with conditional clauses or alterations or items not called for in the RFP documents, or irregularities of any kind, are subject to disqualification by TTUHSC at its option. If TTUHSC receives fewer than three proposals, TTUHSC has the right to reissue this RFP in order to gain additional competitive proposals.

1.5 Public Information

1.5.1 Proposer is hereby notified that TTUHSC strictly adheres to all statutes, court



decisions and the opinions of the Texas Attorney General with respect to disclosure of public information.

- 1.5.2 TTUHSC may seek to protect from disclosure all information submitted in response to this RFP until such time as a final agreement is executed.
- 1.5.3 Upon execution of a final agreement, TTUHSC will consider all information, documentation, and other materials requested to be submitted in response to this RFP, to be of a non-confidential and non-proprietary nature and, therefore, subject to public disclosure under the *Texas Public Information Act* (*Government Code*, Chapter 552.001, et seq.). Proposer will be advised of a request for public information that implicates their materials and will have the opportunity to raise any objections to disclosure to the Texas Attorney General. Certain information may be protected from release under Sections 552.101, 552.110, 552.113, and 552.131, *Government Code*.

1.6 Inquiries and Interpretations

- 1.6.1 TTUHSC may in its sole discretion respond in writing to written inquiries concerning this RFP and post its response as an Addendum to all parties recorded by TTUHSC as having received a copy of this RFP. Only TTUHSC's responses that are made by formal written addenda will be binding on TTUHSC ("Addenda"). Any verbal responses, written interpretations or clarifications other than Addenda to this RFP will be without legal effect. All Addenda issued by TTUHSC prior to the Submittal Deadline will be and are hereby incorporated as a part of this RFP for all purposes.
- 1.6.2 Proposers are required to acknowledge receipt of each Addendum as specified in this Section. The Proposer must acknowledge all Addenda by completing, signing and returning the Addenda Checklist (ref. APPENDIX D). The Addenda Checklist must be received by TTUHSC prior to the Submittal Deadline and should accompany the Proposer's proposal.
- 1.6.3 Any interested party that receives this RFP by means other than directly from TTUHSC is responsible for notifying TTUHSC that it has received an RFP package, and should provide its name, address, telephone number and FAX number to TTUHSC, so that if TTUHSC issues Addenda to this RFP or provides written answers to questions, that information can be provided to such party.



SECTION 2 NOTICE TO PROPOSER

2.1 Submittal Deadline

TTUHSC will accept proposals submitted in response to this RFP until 4:30 PM, Central Time on September 21, 2026 (the "Submittal Deadline"). Proposals should be delivered to:

Texas Tech University Health Sciences Center
Purchasing Office
Attention: Solicitation Manager - RFP 739-SL3821039

2.2 TTUHSC Contact Person

Proposers will direct all questions or concerns regarding this RFP to the following TTUHSC contact ("TTUHSC Contact"):

Solicitation Manager
Tel. (806) 743-7841 • eFax (806) 743-7850
solicitations@ttuhsc.edu

TTUHSC specifically instructs interested parties to restrict all contact and questions regarding this RFP to written communications forwarded to TTUHSC Contact. TTUHSC Contact must receive all questions or concerns no later than August 21, 2026. TTUHSC will have a reasonable amount of time to respond to questions or concerns. It is TTUHSC's intent to respond to all appropriate questions and concerns; however, TTUHSC reserves the right to decline to respond to any question or concern.

2.3 Key Events Schedule

TTUHSC will make a good faith effort to follow the timeline below for evaluating, negotiating and issuing an award:

Distribution of RFP	August 14, 2026
Deadline for Submission of Written Questions	August 21, 2026
Deadline for Submission/Delivery of Proposals	September 21, 2026
Evaluation of Proposals	September 21, 2026 – November 30, 2026

2.4 Anticipated Term

The anticipated term of any resulting agreement will begin on the date an agreement is executed, and expire on August 31, 2027.



SECTION 3 PROPOSAL SUBMISSION PROCEDURES

3.1 Number of Copies

Proposer must submit a total of **one (1)** complete copy of its entire proposal. An original or digital signature by an authorized officer of Proposer must appear on the Execution of Offer (ref. APPENDIX B) of the submitted proposal.

3.2 Submittal Instructions for Online (TechBid) Proposals

- 3.2.1 TTUHSC **prefers** that all proposals be submitted using the TechBid system at <https://bids.scquest.com/apps/Router/PublicEvent?CustomerOrg=TexasTech>.
- 3.2.2 Proposals must be signed by the responding company's official authorized to commit such proposals. Failure to sign the Execution of Offer will be basis for proposal disqualification. The TechBid system contains a mandatory "Bidder Affirmation" checkbox certifying this information. **By submitting their proposal online, proposers automatically qualify as having a valid signature.**
- 3.2.3 All proposals must be submitted online no later than the date and time indicated in Section 2.1 "Submittal Deadline."

3.3 Submittal Instructions for Mailed Proposals (Not Required if Submitted Online)

- 3.3.1 TTUHSC **prefers** that all proposals be submitted using the TechBid system at <https://bids.scquest.com/apps/Router/PublicEvent?CustomerOrg=TexasTech>. However, if necessary, the proposer may elect to submit a printed version of the proposal and submit the proposal by mail or carrier service.
- 3.3.2 One (1) original individually-bound completed proposal is required for the mailed or delivered submittals. Note: One (1) electronic version (USB Drive) is also required for archival purposes.
- 3.3.3 Proposals must be signed by the responding company's official authorized to commit such proposals. Failure to sign the Execution of Offer will be basis for proposal disqualification.
- 3.3.4 Proposals should be submitted in a sealed envelope or box marked with the name of the RFP (as shown on the cover page of this RFP) and the opening date. All proposals must be submitted no later than the date and time indicated in Section 2.1 "Submittal Deadline."

3.4 Proposal Validity Period

Each proposal must state that it will remain valid for TTUHSC's acceptance for a minimum of ninety (90) days after the Submittal Deadline, to allow time for evaluation, selection, and any unforeseen delays.



3.5 Terms and Conditions

Proposer must comply with the requirements and specifications contained in this RFP, including the Agreement (ref. APPENDIX A), the Notice to Proposer (ref. Section 2 of this RFP), Proposal Submission Procedures (ref. Section 3 of this RFP) and the Specifications and Scope of Work (ref. Section 5 of this RFP). If there is a conflict among the provisions in this RFP, the provision requiring Proposer to supply the better quality or greater quantity will prevail.

3.6 Alternate Proposals

TTUHSC may consider alternate proposals submitted by Proposer. Proposers submitting alternate proposals should (i) clearly identify any exceptions taken to the requirements and specifications set forth in this RFP and (ii) include a detailed description of the alternative(s) proposed. Proposer may suggest additions to the requirements and specifications set forth in this RFP, and all such suggestions must be clearly identified. Alternate proposals should be submitted as attachments to the proposal. Alternate proposals shall meet the same requirements and shall be in the same format as the proposal's base format.

3.7 VetHUB Subcontracting Plan

A VetHUB Subcontracting Plan ("HSP") is required as part of Proposer's proposal. The HSP will be developed and administered in accordance with TTUHSC's Policy on Utilization of Historically Underutilized Businesses attached as APPENDIX C and incorporated for all purposes.

Each Proposer must complete and return the HSP in accordance with the terms and conditions of this RFP, including APPENDIX C. Proposers that fail to do so will be considered non-responsive to this RFP in accordance with Section 2161.252, Government Code.

TTUHSC has reviewed this RFP in accordance with Title 34, Texas Administrative Code, Section 20.13 (a), and has determined that subcontracting opportunities are probable under this RFP.

A search has been conducted of the Centralized Master Bidders List to identify active VetHUB vendors in accordance with Title 34, Texas Administrative Code, Section 20.14(a)(1). The following NIGP commodity codes were included:

Code #1 (**91878**)

Results can be viewed at the following link:

<https://mycpa.cpa.state.tx.us/tpasscmbsearch/index.jsp>



SECTION 4 EVALUATION CRITERIA AND AWARD

4.1 Evaluation Process

- 4.1.1 TTUHSC will utilize a proposal evaluation team for the evaluation of this RFP. The award will be based on the proposal judged to be in the best interest of TTUHSC, the judgment in this regard shall be considered final. Any agreement resulting from this request shall be awarded to the proposer providing the “best value” to TTUHSC.
- 4.1.2 Under section 51.9335 of the Texas Education Code in determining what is the best value to an institution of higher education, TTUHSC shall consider the purchase price, the reputation of the proposer and of the proposer’s goods or services, the quality of the proposer’s goods or services, the extent to which the goods or services meet TTUHSC’s needs, the proposer’s past relationship with TTUHSC, the impact on the ability of TTUHSC to comply with laws and rules relating to historically underutilized businesses and to the procurement of goods and services from persons with disabilities, the total long-term cost to TTUHSC of acquiring the proposer’s goods or services, and any other relevant factor that a private business entity would consider in selecting a vendor.

4.2 Proposer’s Acceptance of Evaluation Methodology

Submission of a proposal indicates proposer’s acceptance of the evaluation technique and proposer’s recognition that some subjective judgments must be made by TTUHSC during the assigning of points.

4.3 Evaluation Criteria and Weights

- 4.3.1 Each proposal shall be evaluated on the ability to meet TTUHSC’s requirements and to provide the best value to TTUHSC.
- 4.3.2 The evaluation will be based on the following formula:

Criteria	Weight
Proposer’s Pricing Proposal	30%
Proposer’s Experience and Reputation	15%
Proposer’s Service Specifications	55%

4.4 Consideration of Additional Information

Consideration may also be given to any additional written information and comments that may serve to clarify the proposal information to TTUHSC.

4.5 Oral Presentations/Interviews

Upon completion of the initial review and evaluation of the proposals submitted, selected proposers may be invited to participate in oral presentations. Oral presentations/interviews are an option of the evaluation team and may or may not be conducted; therefore, proposals should be complete when submitted by the deadline indicated in the Section 2.1 entitled “Submittal Deadline.”



4.6 Award Process

During the opening, proposals will be acknowledged publicly to identify the names of the proposers, but will be afforded security sufficient to preclude disclosure of the contents of the proposal, including prices or other information, prior to award. After opening, an award may be made on the basis of the proposals initially submitted, without discussion, clarification or modification, or on the basis of negotiation with any of the proposers or, at TTUHSC's sole option and discretion, TTUHSC may discuss or negotiate all elements of the proposal with selected proposers which represent a competitive range of proposals. For purposes of negotiation, a competitive range of acceptable or potentially acceptable proposals may be established comprising the highest rated proposal(s).

4.7 Best and Final Offer

When deemed appropriate, after the submission of proposals but before the final selection of the successful proposal, TTUHSC may permit a proposer to revise its proposal in order for TTUHSC to obtain a best and final offer. TTUHSC will provide each proposer within the competitive range with an equal opportunity for discussion and revision of their proposal, and a proposer may elect not to amend their original proposal. TTUHSC is not bound to accept the best-priced proposal if that proposal is not the most advantageous to TTUHSC as determined by the evaluation team.

4.8 Award of Agreement

4.8.1 TTUHSC reserves the right to award an agreement for all or any portion of the requirements proposed by reason of this request, award multiple agreements, or to reject any and all proposals if deemed to be in the best interests of TTUHSC and to re-solicit for proposals, or temporarily or permanently abandon the solicitation. If TTUHSC awards an agreement, it will award the agreement to the proposer whose proposal is the most advantageous to TTUHSC, considering price and the evaluation factors set forth in this RFP. Any actual or prospective proposer who is aggrieved in connection with the solicitation, evaluation or award of an agreement may formally protest in accordance with the following:

<https://www.fiscal.ttuhscc.edu/purchasing/vendors/protestprocedures.aspx>

4.8.2 TTUHSC intends to negotiate and award an agreement with the vendor submitting the proposal the evaluation committee determines best meets the requirements and is considered to be the best value overall. The agreement is a non-exclusive agreement, and TTUHSC reserves the right to enter into one or more agreements with third parties covering the same or similar Services.

4.8.3 The proposer may submit its standard agreement for review by TTUHSC. The agreement entered into by the parties shall consist of the RFP, the signed proposal submitted by the vendor, the specifications including all the modifications thereof, a written agreement, and purchase order(s), all of which shall be referred to collectively as the agreement documents.

4.8.4 Any resulting agreement may be subject to review and approval by The Board of Regents of Texas Tech University System (the "BOR"). If the BOR does not approve the agreement, then the agreement is null, void, and of no effect. Rules governing the



approval and execution of contracts can be viewed here: The Rules & Regulations of the Board of Regents, Chapter 07 - <https://www.texastech.edu/board-of-regents/regents-rules/chapter-07-fiscal-management.pdf>

- 4.8.5 TTUHSC is required under Texas Legislature House Bill 1295 (section 2252.908 of the Government Code) to request Ethics Commission Reporting from contractors with agreements that:

- (1) requires an action or vote by the governing body of the entity or agency; or
- (2) has a value of at least \$1 million (value of an agreement is based on the amount of consideration received or to be received by the contractor from TTUHSC).

The Business Entity must file Form 1295 electronically with the Texas Ethics Commission using the online filing application:

https://www.ethics.state.tx.us/whatsnew/elf_info_form1295.htm



SECTION 5 SPECIFICATIONS AND SCOPE OF WORK

5.1 General

The minimum requirements and the specifications for the Services, as well as certain requests for information to be provided by Proposer as part of its proposal, are set forth below. The successful Proposer is referred to as the “Contractor.”

5.2 Minimum Requirements

Each Proposal must include information that clearly indicates that Proposer meets each of the following minimum qualification requirements if applicable:

Proposer is current with the State of Texas Comptroller of Public Accounts (if applicable)
<https://fmcpa.cpa.state.tx.us/tpis/>

Proposer can provide Certificate of Franchise Tax status. (if applicable)
<https://ourcpa.cpa.state.tx.us/coa/Index.html>

Proposer shall demonstrate evidence of certifications, permits, licenses and insurances as appropriate to provide the Services as required.

Proposer is in compliant with the Texas Risk and Authorization Management Program (TX-RAMP) as may be required.
<https://dir.texas.gov/information-security/texas-risk-and-authorization-management-program-tx-ramp>

Proposer certifies that neither it, nor its holding companies or subsidiaries, is:

- (a) Listed in Section 889 of the 2019 National Defense Authorization Act;
- (b) Listed in Section 1260H of the 2021 National Defense Authorization Act; or
- (c) Owned by the government of a country on the U.S. Department of Commerce’s foreign adversaries list under 15 C.F.R Section 791.4; or
- (d) Controlled by any governing or regulatory body located in a country on the U.S. Department of Commerce’s foreign adversaries list under 15 C.F.R Section 791.4.

5.3 Additional Requirements Specific to this RFP

Proposer must submit the following informational sections as part of Proposer’s proposal:

1. Proposer’s Experience and Reputation

- Provide written detail about corporate background and experience.
- Provide at least 3 references (with names and contact information) and description of services from current or recent clients. These should include specifications and requirements most similar to those described in this RFP.



2. Service Specifications

- **Detailed Project Approach**
Provide a description of the proposed approach to the project, detailing how Proposer will meet or exceed all requirements in Section 5.4. This should include a description of the work program, including a description of the deliverables and activities. An outline of the proposed work plan should accompany the narrative. It is the responsibility of the Proposer to assess and define the appropriate number, type and hours of its staff required to complete the project on schedule.
- **Project Team**
Identify the key individuals, including sub-consultants if applicable, who are proposed to be part of the team, along with their qualifications and experience. The information should include the expected amount of involvement and time commitment for each of these individuals.
- **Project Schedule**
A desired project schedule has been included in Section 5.4 Services Specifications. Please respond with the company's ability to meet this timeline.
- **Scope of Work ("SOW")**
Provide a scope of work project document for inclusion as Exhibit "A" SCOPE OF WORK to the Consulting Services Agreement contained in Appendix A of the RFP.

5.4 Services Specifications

Overview:

Texas Tech University Health Sciences Center Is seeking a qualified Contractor to provide enterprise wide Artificial Intelligence (AI), strategy, workforce upskilling, workflow automation, custom development, and adoption analytics services.

Objective:

The primary objective is to move TTUHSC from an isolated, low-complexity AI utilization (e.g., basic search, text summarization) to durable, measurable, high-value adoption across academic, administrative, clinical, and research operational units.

Background:

TTUHSC has provisioned enterprise AI tools, including Large Language Models (LLMs) and embedded AI productivity assistants. To maximize return on investment (ROI), TTUHSC requires external expertise to establish governance frameworks, build institutional capability, redesign high-value workflows, and implement tracking metrics that quantify usage, proficiency, and financial/operational impact.

This specification defines the functional requirements, scope of work, and expected deliverables. It does not mandate a single proprietary methodology or commercial software delivery mechanism. Respondents may propose integrated advisory services, training curricula, coaching frameworks, analytics platforms, custom engineering, or a combination thereof that fulfills the requirements outlined herein.



Requirements:

Contractor will be responsible for:

A. AI Strategy, Governance & Transformation Planning

The Contractor shall provide strategic consulting and administrative planning to establish a unified enterprise roadmap for AI deployment. Requirements include:

1. Strategic Alignment & Visioning: Facilitate executive alignment sessions to define institutional ambition, risk tolerance, target pace, and strategic benchmarks.
2. Readiness & Maturity Assessment: Conduct an initial assessment of TTUHSC's AI skills, data architecture, operational pain points, security policies, and cultural adoption barriers.
3. Transformation Roadmap: Formulate an executable roadmap establishing prioritized milestones, resource requirements, key risk indicators, and governance gateways.
4. Governance Framework: Define policies for permissible AI use cases, data privacy protection, IP management, algorithmic accountability, and risk mitigation.
5. Traceability Matrix. For each material initiative included in the Transformation Roadmap, identify the assessment finding(s), operational need(s), or identified opportunity that support the recommendation. Provide a findings-to-recommendations traceability matrix or equivalent artifact demonstrating this relationship. The final transformation roadmap should provide an evidence-based progression from current-state findings, identified gaps and opportunities, prioritized interventions, implementation sequencing, and measurable outcomes.

B. Leadership Activation & Change Management

The Contractor shall design and execute a change management framework to align leadership and build sustainable internal capacity. Requirements include:

1. Leadership Education: Deliver tailored workshops and executive briefing sessions for VPs, Deans, Department Heads, and People Managers regarding AI risk, strategy, and operational opportunities.
2. Change Champions Network: Design and operationalize a peer champion network across administrative and academic departments to drive grassroots adoption and peer-to-peer coaching.
3. Change Management Communications Plan: Provide communication templates, engagement playbooks, and change methodologies to drive employee engagement and reduce adoption friction.
4. Internal Capability Handover: Develop "train-the-trainer" programs and operational playbooks to transfer change management methodologies to TTUHSC personnel, minimizing long-term reliance on external consultants.



C. Workforce Upskilling, Training & Capability Building

The Contractor shall deliver multi-modal training programs to raise AI and data literacy across the general workforce and targeted functional roles. Requirements include:

1. Structured Curricula & Pathways: Provide role-based learning tracks tailored to specific functional domains (e.g., procurement, finance, clinical administration, academic operations).
2. Multi-Format Instruction: Deliver instruction via live virtual sessions, instructor-led workshops, self-paced modules, applied project-based labs, or apprenticeship-style coaching.
3. Applied Learning on TTUHSC Use Cases: Ensure training modules leverage practical, sanitized institutional scenarios and enterprise-approved tools rather than generic market examples.
4. Role-Specific Coaching & Prompt Engineering: Provide guidance on advanced prompt design, contextual grounding, system instruction, and task-specific automation techniques.
5. Institutional Knowledge Repository: Establish a searchable, filterable repository or library of validated internal AI use cases, prompts, and best practices to preserve institutional memory.

D. Workflow Automation, Custom Solutions & Agentic Strategy

The Contractor shall assist TTUHSC in identifying, prioritizing, engineering, and deploying high-impact workflow automations and custom AI integrations. Requirements include:

1. Workflow Discovery & Opportunity Mapping: Evaluate functional departmental processes to identify high-ROI candidates for AI-driven redesign and task automation.
2. Solution Engineering & Prototyping: Build, test, and validate functional prototypes for high-priority use cases, including bespoke application development, API integrations, and custom model orchestration where warranted.
3. Agentic AI Architecture & Deployment: Formulate an operational and technical framework for deploying, monitoring, and controlling agentic AI capabilities (multi-step autonomous workflows).
4. Agent Management & Oversight: Establish auditing, approval, access control, and human-in-the-loop (HITL) procedures to govern agentic tools operating in production environments.



E. Analytics, Adoption Tracking & Impact Measurement

The Contractor shall provide solutions via a software platform, managed analytics services, or integrated reporting tools to track usage, skill acquisition, and financial/operational return. Requirements include:

1. Adoption & Engagement Analytics: Track active utilization, frequency, function distribution, and feature usage across TTUHSC's enterprise AI solutions.
2. Proficiency & Skill Tracking: Monitor employee skill progression from basic usage to high-value, complex workflow integrations.
3. Intervention Identification: Provide automated or programmatic reporting that identifies lagging departments, adoption bottlenecks, or targeted coaching requirements.
4. ROI Modeling & Verification: Provide a transparent, defensible framework to model, measure, and verify financial savings, hours saved, and operational velocity gains using TTUHSC-supplied baseline metrics and assumptions.

F. Enterprise Security & Data Privacy Compliance

1. Data Handling & Sovereignty: The Contractor must ensure that all services, platforms, and custom solutions strictly comply with state and federal requirements, including FERPA, HIPAA, and Texas Department of Information Resources (DIR) policies.
2. Data Usage Restrictions: Institutional data provided by TTUHSC shall not be used to train, fine-tune, or improve vendor proprietary models, public models, or third-party datasets.
3. Access Control & Encryption: Any software component or data transfer mechanism must enforce Role-Based Access Control (RBAC), single sign-on (SSO) integration (e.g., SAML 2.0 / OAuth2), encryption in transit (TLS 1.3), and encryption at rest (AES-256).

G. Engagement Structure and Management

1. Project Management Framework: The Contractor shall designate a Project Lead and provide a detailed Project Plan outlining timelines, milestones, deliverables, dependency chains, and escalation paths.
2. Review Cadence: Establish regular operational status reporting (e.g., weekly project status, monthly executive reviews) tied directly to agreed KPIs and milestone acceptance criteria.



Project Deliverables:

Deliverable	Area	Description
Deliverable 1	Strategy & Planning	Comprehensive AI Transformation Plan, including ambition statement, roadmap, and baseline readiness assessment report.
Deliverable 2	Leadership Activation	Leadership Enablement Package, including executive workshop materials, change management communications plan, and train-the-trainer playbooks.
Deliverable 3	Workforce Upskilling	Role-Based Training Curricula, live/virtual instruction delivery, certification/skill verification tracking, and use-case repository.
Deliverable 4	Workflow & Automation	Workflow Redesign Specifications, functional automation prototypes/custom solutions, and Agentic AI Governance Policy.
Deliverable 5	Analytics & ROI	Analytics & ROI Reporting Dashboard/Service providing adoption telemetry, proficiency tracking, and verified financial impact modeling.
Deliverable 6	Knowledge Transfer	Final Knowledge Transfer Package, operational documentation, code/architecture documentation (where applicable), and exit transition plan.

Project Schedule:

TTUHSC desires to operate in accordance with the following schedule. These dates are for planning purposes and subject to change:

- Kick-off meeting: _____
- Completion of Deliverable 1: _____
- Completion of Deliverable 2: _____
- Completion of Deliverable 3: _____
- Completion of Deliverable 4: _____
- Completion of Deliverable 5: _____
- Completion of Deliverable 6: _____



SECTION 6 PRICING SCHEDULE

Proposal of: _____
(Proposer Company Name)

Ref.: Consulting Services - Enterprise AI Adoption & Enablement

RFP No.: RFP 739-SL3821039

Having carefully examined all the specifications and requirements of this RFP and any attachments thereto, the undersigned proposes to furnish the Services required pursuant to the above-referenced Request for Proposal upon the terms quoted below.

6.1 Pricing for Services Offered:

1. Provide a "not to exceed" fixed fee for each of the deliverables including associated fees (i.e. printing costs, attendance at meetings, travel), for the Consulting Services - Enterprise AI Adoption & Enablement. A schedule should be included to document the level of effort used to derive the quoted fixed fee.
2. An hourly resource rate card by resource type (e.g., Project Manager, Analyst) valid through August 31, 2027 which will be used as the basis for change orders.

6.2 TTUHSC's Payment Terms

TTUHSC's standard payment terms are "Net 30 days."

By: _____

Name: _____

Title: _____

Date: _____



SECTION 7 GENERAL TERMS AND CONDITIONS

The terms and conditions contained in (i) the attached Agreement (ref. APPENDIX A) or, in the sole discretion of TTUHSC, terms and conditions substantially similar to those contained in the Agreement and (ii) the Texas Tech University System Required Contract Terms set forth at <http://www.texastech.edu/ogc/required-contract-terms.pdf> (collectively, the "Required Terms") will constitute and govern any agreement that results from this RFP. If Proposer takes exception to any of the Required Terms, Proposer will submit a list of the exceptions as part of its proposal. Proposer's exceptions will be reviewed by TTUHSC and may result in disqualification of Proposer's proposal as non-responsive to this RFP. If Proposer's exceptions do not result in disqualification of Proposer's proposal, then TTUHSC may consider Proposer's exceptions when TTUHSC evaluates the Proposer's proposal.



APPENDIX A AGREEMENT

CONSULTANT SERVICES AGREEMENT

This Consultant Services Agreement (“Agreement”) is made and entered into by and between Texas Tech University Health Sciences Center, a public institution of higher education located in the State of Texas (“University”), and _____ (“Consultant”). University and Consultant may be referred to herein individually each as a “Party” or collectively as the “Parties.”

Background

- University desires to obtain expert consulting services to provide enterprise-wide Artificial Intelligence strategy, workforce upskilling, workflow automation, custom development, and adoption analytics services.
- Consultant represents that Consultant possesses the necessary qualifications and knowledge to perform these services.

Agreement

Now therefore, for the consideration herein expressed, University and Consultant hereby agree as follows.

Responsibilities of Consultant

- 1.1 Consultant shall perform the scope of work shown on Exhibit “A” attached hereto and incorporated herein for all purposes.
- 1.2 Upon University’s request, Consultant will report in writing to University on the status of Consultant’s work. Consultant agrees to allow University and any other state agency and the legislature at University’s discretion, to distribute the consultant report, if any, and to post the report on University’s Internet website or the website of a standing committee of the legislature. During the term of this Agreement, University shall always have the right to inspect Consultant’s work in progress and to receive copies of all or any portion thereof. The work product will be advice, suggestions, and information as requested on various projects.
- 1.3 Consultant agrees that all writings, reports, or other materials produced by Consultant and its employees relating to the services performed under this Agreement shall be deemed “works made for hire” as that term is defined in the U.S. Copyright Act, that all rights thereto shall be owned by University for its exclusive use and re-use at any time without further compensation and without any restrictions, and that Consultant shall not assert any claim thereto, and Consultant shall execute any documents that may be necessary to transfer such rights to University.
- 1.4 Consultant will not remove any property of any nature whatsoever, including intellectual property, from University’s premises without University’s prior written consent. Upon completion of the services, or termination of this Agreement, Consultant will return all materials provided by University in connection with work under this Agreement along with all information developed to date during the course of providing services under this Agreement.
- 1.5 Consultant represents, warrants, and agrees to perform the services under this Agreement in compliance with all applicable federal, state, and local laws, regulations, and ordinances. Consultant represents, warrants, and agrees that (a) it will perform the services in a good and workmanlike manner and in accordance with commercially reasonable standards of Consultant’s profession or business, and (b) all of the services to be performed will be of the quality that prevails among similar businesses engaged in providing similar services in major United States urban areas under the same or similar circumstances. In addition, Consultant represents and warrants that Consultant and its personnel performing services under this Agreement hold and shall continue to maintain any and all licenses or certifications required under law to perform the services described herein. Consultant further represents and warrants that Consultant and its employees do not have any obligations, conflicts, commitments, or impediments of any kind that will affect, limit, or prevent its performance of the services under this Agreement, and Consultant shall immediately advise University should any such issue arise during the term of this Agreement.
- 1.6 Consultant agrees to maintain for Consultant’s personnel performing under this Agreement standard employer’s liability and worker’s compensation insurance. In addition, Consultant shall maintain general liability and



automobile insurance coverage with limits of not less than \$250,000.00 per person and \$500,000.00 per occurrence. Certificates of insurance verifying the foregoing requirements shall be provided to University prior to commencement of any services under this Agreement.

- 1.7 Consultant agrees to indemnify and hold harmless University, its Regents, employees, and agents from any claim, damage, liability, injury, expense, or loss (including attorney's fees) arising out of Consultant's performance, direct or indirect, under this Agreement. In addition, Consultant warrants all writings or other materials produced by Consultant and its employees relating to the services performed under this Agreement do not infringe any patent, copyright, trademark, or other intellectual property rights of a third party and Consultant shall defend, indemnify, and hold harmless University, its Regents, employees, and agents from and against all claims arising from infringement or alleged infringement of any patent, copyright, trademark, or other intellectual property rights of a third party arising out of, in connection with, or resulting from this Agreement or the writings or other materials provided under this Agreement. This Article shall survive termination of this Agreement.
- 1.8 Consultant certifies this Agreement is not prohibited under Tex. Gov't Code § 2261.252(b) and agrees that if Consultant's certification is or becomes untrue, this Agreement is void, and Consultant will not seek and waives its right to seek any legal or equitable remedy for past or future performance under this Agreement, including damages, whether under breach of contract, unjust enrichment, or any other legal theory; specific performance; and injunctive relief.

Payment

- 1.9 University agrees to pay for each deliverable upon completion by Consultant in accordance with Exhibit "A" for a total not to exceed amount of \$_____ including travel and expenses, attached hereto and incorporated herein for all purposes. University shall only reimburse travel expenses pre-approved in writing, at rates not to exceed the most current rates set by the Texas Comptroller (<https://fm.xcpa.texas.gov/fmx/travel/texttravel/rates/current.php>). University may reimburse rental car expenses at rates not to exceed those set in University contracts. University will not reimburse for alcoholic beverages.
- 1.10 University agrees to make payments within thirty (30) days of receipt of a properly submitted, itemized invoice from Consultant. The invoice must reference the University contract number affixed to this Agreement and must agree in all respects to the requirements and price schedules set forth herein. Final payment is contingent upon satisfactory receipt of the final work product and a final itemized invoice for services rendered.
- 1.11 Consultant agrees to provide the following notice to all of its employees and subcontractors who may work on any campus of Texas Tech University System: All sex offenders required to register with local law enforcement authorities under Chapter 62 of the Texas Code of Criminal Procedure and who intend to work or carry on a vocation (full-time or part-time) on any campus of Texas Tech University System for a consecutive period exceeding fourteen (14) days or for an aggregate period exceeding thirty (30) days in a calendar year are required to register (or verify registration) with the law enforcement authority for campus security in accordance with Article 62.064 of the Texas Code of Criminal Procedure within 7 days of beginning work on any campus of Texas Tech University System. In addition, such sex offenders are required to notify the law enforcement authority for campus security within seven (7) days of terminating work on any campus of Texas Tech University System. For additional information, please contact the Texas Tech University Police Department, 2901 4th St., Lubbock, TX 79409, 806-742-3931.

Term and Termination

- 1.12 The term of this Agreement shall commence on _____, and continue in full force and effect through August 31, 2027.
- 1.13 Either Party may terminate this Agreement at any time, with or without cause, by giving the other Party thirty (30) days written notice. Upon notice of termination, Consultant shall not incur any additional expenses and shall submit an invoice for services rendered only to date of notice.
- 1.14 University may terminate this Agreement immediately upon notice to Consultant in the event that Consultant becomes insolvent, makes a general assignment for the benefit of creditors, suffers or permits the appointment of a receiver for its business or assets, becomes subject to any proceeding under any bankruptcy or insolvency laws, whether domestic or foreign, or has wound up or liquidated, voluntarily or otherwise.



- 1.15 “**Event of Force Majeure**” means an event beyond the control of Consultant or University which prevents or makes a Party’s compliance with any of its obligations under this Agreement illegal or impracticable, including but not limited to: act of God (including, without limitation, fire, explosion, earthquake, tornado, drought, and flood); war, act or threats of terrorism, hostilities (whether or not war be declared), invasion, act of enemies, mobilization, requisition, or embargo; rebellion, insurrection, military or usurped power, or civil war; contamination or destruction from any nuclear, chemical, or biological event; riot, commotion, strikes, go slows, lock outs, or disorder; epidemic, pandemic, viral outbreak, or health crisis; or directive of governmental authority. No Party will be considered in breach of this Agreement to the extent that performance of their respective obligations is prevented or made illegal or impracticable by an Event of Force Majeure that arises during the term (or after execution of the Agreement but prior to the beginning of the term). A Party asserting an Event of Force Majeure hereunder (“**Affected Party**”) will give reasonable notice to the other Party of an Event of Force Majeure upon it being foreseen by, or becoming known to, Affected Party. In the event of an Event of Force Majeure, Affected Party will endeavor to continue to perform its obligations under the Agreement only so far as reasonably practicable.
- 1.16 In the event this Agreement is terminated in accordance with this Article, then within thirty (30) days after the effective date of such termination, Consultant shall submit Consultant’s termination statement for Services rendered to the date of termination, and University shall pay Consultant for such Services within thirty (30) days of receipt of Consultant termination statement.
- 1.17 The termination or expiration of this Agreement shall not relieve either Party of any obligation pursuant to this Agreement which arose on or before the date of termination.
- 1.18 University’s performance under the Agreement may be dependent upon appropriation of funds by the Texas legislature (“**Legislature**”) and/or allocation of funds by the TTUS Board of Regents (“**Regents**”). Consultant acknowledges that appropriation and allocation of funds are beyond University’s control. If the Legislature fails to appropriate, or Regents fail to allocate, necessary funds, or if there is a reduction of funding from other revenue sources, University will issue written notice to Consultant and University may terminate this Agreement without further duty or obligation hereunder, other than payment for goods and services already delivered or provided. This Agreement may be funded wholly or partially with federal funds. Consultant shall comply with all applicable provisions of federal law. University utilizes <http://www.gsa.gov> and <https://www.ecfr.gov/> for all federal guidelines.

Compliance

- 1.19 **Sanction or Exclusion Search.** Consultant represents and warrants that neither Consultant or any employees or agents who provide items or services under this Agreement are excluded, suspended, or debarred from participation in any federal or state health care program or federally funded contracts. University may conduct searches of Consultant’s name against various federal and state sanction and exclusion databases, including, but not limited to the HHS OIG List of Excluded Individuals/Entities (LEIE), the GSA Excluded Parties List System (EPLS), and the Texas HHSC Exclusion List. Consultant agrees to immediately inform University as soon as it is aware that it or any of its employees, agents, or contractors providing items or services under the Agreement are subject to the imposition of any such sanctions or exclusion. This Agreement shall be subject to immediate termination by University in the event Consultant, or any of its employees, agents, or contractors, is listed on any federal or state sanction/exclusion list as being subject to sanctions or exclusion.
- 1.20 **Cooperation with University’s Compliance Programs.** Consultant agrees that it, its employees, agents, and contractors will comply with all federal, state, or local laws or regulations applicable to Consultant’s performance of the Agreement. Consultant further agrees that it, its employees, agents, and contractors will comply with University Operating Policies and Procedures located at <https://www.ttuhscc.edu/administration/operating-policies/default.aspx>, as well as all relevant published University compliance programs, as they may be applicable to Consultant’s services under this Agreement.
- 1.21 **Reporting.** Consultant agrees to inform University of any violation of its obligations under this Article or the Agreement regarding compliance, and of any conduct of which it becomes aware related to the performance of the Consultant’s obligations under the Agreement by it or any of its employees, agents, or contractors, or by University or any of its agents, employees, or contractors, which a reasonable person would conclude may violate any of the legal or regulatory requirements identified herein, may represent or be the product of a conflict of interest, kickback, or other inducement, or otherwise constitute fraud, waste, or abuse. Such reporting may be to Texas Tech Compliance and Ethics Line (1-866-294-9352) or to the Institutional Compliance Officer (806-743-3950).



- 1.22 **Breach.** Consultant's breach of any of the provisions of this Article shall constitute a material breach of the Agreement and may result in immediate termination of the Agreement by University. Consultant's breach shall entitle University to any of the remedies provided in the Agreement and this Article in addition to any remedies provided by law

Audit

- 1.23 Consultant understands that acceptance of funds under this Agreement constitutes acceptance of the authority of the Texas State Auditor's Office, or any successor agency (collectively, "Auditor"), to conduct an audit or investigation in connection with those funds pursuant to Section 51.9335(c) *Texas Education Code*. Consultant agrees to cooperate with the Auditor in the conduct of the audit or investigation, including, without limitation, providing all records requested. Consultant will include this provision in all contracts with permitted subcontractors.
- 1.24 In addition, at any time during the term of this Agreement and for a period of four (4) years thereafter, the State of Texas, Texas Tech University System, University, and/or other federal, state, and local agencies which may have jurisdiction over this Agreement, at reasonable times and at its expense reserves the right to audit Consultant's records and books that relate only to this Agreement. In the event such an audit by University reveals any errors/overpayments by University, Consultant shall refund University the full amount of such overpayments within thirty (30) days of such audit findings, or University, at its option, reserves the right to deduct such amounts owing University from any payments due Consultant. If needed for audit, original or independently certified copies of off-site records will be provided to auditors at Consultant's expense within two (2) weeks of written request. This Section shall survive termination of this Agreement.

General Provisions

- 1.25 **Incorporated Terms.** The Parties acknowledge and agree that the Required Contract Terms set forth at <https://www.texastech.edu/ogc/required-contract-terms.pdf> and the Required IT Terms set forth at <http://www.texastech.edu/ogc/contracting/required-IT-terms.pdf> are incorporated into this Agreement as if expressly stated herein.
- 1.26 **Disclosure.** Consultant agrees that Consultant, its officers, employees, and agents will not disclose any University information, data, or other materials created by Consultant, or others, relating to the services performed under this Agreement without the express written permission of an authorized University officer. Such obligations shall not, however, extend to any materials which:
- 1.26.1 were in the possession of Consultant prior to this Agreement;
 - 1.26.2 are, or hereafter become, generally available to the public by publication or otherwise through no action of Consultant; or
 - 1.26.3 are required by law or regulation to be disclosed.
- This Article shall survive termination of this Agreement
- 1.27 **Subcontract.** Consultant shall not subcontract the services to be provided herein without prior written approval of University.
- 1.28 **Anti-Discrimination.** University and Consultant agree that in the performance of this Agreement there will be no discrimination against any person or persons on account of race, color, sex, religion, age, disability, national origin, or veteran status, and that both Parties agree to comply with all applicable requirements of the Civil Rights Act of 1964, as amended; 1991 Civil Rights Act; the Vietnam Era Veterans Readjustment Act of 1974; the Rehabilitation Act of 1973, as amended; the Age Discrimination Act of 1975; the Americans with Disabilities Act of 1990; and all federal rules and regulations, state laws, and executive orders as applicable.
- 1.29 **Independent Contractor.** Consultant agrees that it is an independent contractor and that this Agreement does not form a joint venture or partnership. University will not be responsible for the Federal Insurance Contribution Act (FICA) payments, federal or state unemployment taxes, income tax withholding, Workers Compensation Insurance payments, or any other insurance payments, nor will University furnish any medical or retirement benefits or any



paid vacation or sick leave. Consultant is responsible for conduct of business operation, including employee salaries, travel, etc.

- 1.30 **Notices.** All notices, consents, approvals, demands, requests, or other communications provided for or permitted to be given under any of the provisions of the Agreement shall be in writing and sent via registered or certified mail, overnight courier, or email, and notice will be deemed given (i) if mailed, when deposited, postage prepaid, in United States mail; (ii) if sent by overnight courier, one (1) business day after delivery to the courier; and (iii) if sent by email, when received:

Consultant Name	University
Attention: _____	Texas Tech University Health Sciences Center
Title	ATTN: Contracting Office
Address	3601 4th Street, STOP 6217
Address	Lubbock, Texas 79430
Email Address	contracting@ttuhsc.edu

Notice of a change in address of one of the Parties shall be given in writing to the other Party as provided above but shall be effective only upon actual receipt. No agreements, amendments, or modifications, implied or otherwise, shall be binding on any of the Parties unless set forth in writing and signed by both Parties.

- 1.31 **Amendment.** This Agreement and each of its provisions shall be binding upon the Parties and may not be waived, modified, amended, or altered except by in writing signed by the Parties.
- 1.32 **Assignment.** Neither Party may assign this Agreement, in whole or in part, without the prior written consent of the other Party.
- 1.33 **Publicity and Marks.** Consultant agrees that it will not publicize this Agreement or disclose, confirm, or deny any details of this Agreement to third parties, or use University's name or protected marks without University's prior written approval.
- 1.34 **Venue; Governing Law.** This Agreement is governed by and construed and enforced in accordance with the laws of the State of Texas. Pursuant to Section 109.005 of the Texas Education Code, the County in which University's Chief Executive Officer is located shall be the sole proper place of venue for any legal action or proceeding arising out of this Agreement or the enforcement of any provision in this Agreement.
- 1.35 **Breach of Contract Claims.** The dispute resolution process provided for in Texas Government Code, Chapter 2260 ("Chapter 2260") and the related rules adopted by the AG pursuant to Chapter 2260 will be used by Consultant to attempt to resolve any claim for breach of contract made by Consultant that cannot be resolved in the ordinary course of business. Chapter 2260 requires Consultant to first provide written notice of a claim and negotiate with University before proceeding to the contested case process. University will examine Consultant's claim and any counterclaim and negotiate with Consultant in an effort to resolve such claims. Governed by rules adopted by the AG, the contested case process is Consultant's sole and exclusive method to seek a remedy for breach unless, after considering the Administrative Law Judge's report, the Legislature gives consent for Consultant to sue under Texas Civil Practice and Remedies Code Chapter 107. The Parties specifically agree that (i) neither the execution of the Agreement by University nor any other conduct, action, or inaction of any representative of University relating to the Agreement constitutes or is intended to constitute a waiver of University or the State's sovereign immunity to suit; and (ii) University has not waived its right to seek redress in the courts. Any term or provision in the Contractor Terms indicating agreement to arbitration, other alternative dispute resolution, or litigation options in the event of a dispute between the Parties is expressly rejected and is null and void. Notwithstanding any other provision of the Agreement to the contrary, unless otherwise requested or approved in writing by University, Consultant will continue performance and will not be excused from performance during the period any breach of agreement claim or dispute is pending under the above processes; however, Consultant may suspend performance during the pendency of such claim or dispute if Consultant has complied with all provisions of Texas Government Code § 2251.051, and such suspension of performance is expressly applicable and authorized under that law.
- 1.36 **Severability.** If one or more provisions of this Agreement, or the application of any provision to any party or circumstance, is held invalid, unenforceable, or illegal in any respect, the remainder of this Agreement and the application to other parties or circumstances will remain valid and in full force and effect.



- 1.37 **No Third Party Beneficiaries.** This Agreement shall be binding upon and inure to the benefit of the Parties hereto, their successors and permitted assigns. Nothing in this Agreement is intended, nor shall be deemed, to confer any benefits on any third party, including, without limitation, any patients of the Consultant, nor shall such person or entity have any right to seek, enforce, or recover any right or remedy with respect hereto.
- 1.38 **Warranty of Authority.** The person(s) executing this Agreement on behalf of the Parties, or representing themselves as executing this Agreement on behalf of a Party, warrant and guarantee that each has been duly authorized by the appropriate Party to execute this Agreement on behalf of the Party and to validly and legally bind the Party to all of its terms, performances, and provisions.
- 1.39 **Certifications Required by Texas Law.**
- a. **Taxable Entity.** If Consultant is a taxable entity as defined by Chapter 171, Texas Tax Code (“Chapter 171”), then Consultant certifies that it is not delinquent in the payment of any taxes due under Chapter 171, is exempt from the payment of those taxes, or is an out-of-state taxable entity that is not subject to those taxes.
 - b. **Child Support.** Pursuant to Texas Family Code § 231.006, Consultant certifies it is not ineligible to receive the award of the Agreement or payments under the Agreement and acknowledges that the Agreement may be terminated and payment may be withheld if this certification is inaccurate.
 - c. **No Trafficking.** Pursuant to Texas Government Code § 2155.0061, Consultant certifies that the individual or business entity named in this Agreement is not ineligible to receive the Agreement and acknowledges that this Agreement may be terminated and payment withheld if this certification is inaccurate.
 - d. **No Boycott.** If this Agreement has a value of \$100,000 or more to be paid wholly or partly from public funds of University, and if Consultant is a company, other than a sole proprietorship, with 10 or more full-time employees, then pursuant to Texas Government Code §§ 2271.002 and 2274.002, Consultant affirmatively states it does not and will not:
 - i. Boycott Israel during the term of this Agreement. In this paragraph, the terms “company” and “boycott Israel” shall have the meanings described in Texas Government Code § 808.001.
 - ii. Boycott energy companies during the term of this Agreement. In this paragraph, the terms “company” and “boycott energy companies” shall have the meanings described in Texas Government Code § 809.001.
 - e. **No Conflicts.** Consultant certifies this Agreement is not prohibited under Texas Government Code § 2261.252(b) and agrees that if Consultant’s certification is or becomes untrue, this Agreement is void, and Consultant will not seek and waives its right to seek any legal or equitable remedy for past or future performance under this Agreement, including damages, whether under breach of contract, unjust enrichment, or any other legal theory; specific performance; and injunctive relief.
 - f. **Compliance with Texas Government Code § 2274.002.** If this Agreement has a value of \$100,000 or more to be paid wholly or partly from public funds of University, and if Consultant is a company, other than a sole proprietorship, with 10 or more full-time employees, then pursuant to Texas Government Code § 2274.002, Consultant verifies it (1) does not have a practice, policy, guidance, or directive that discriminates against a firearm entity or firearm trade association; and (2) will not discriminate during the term of the contract against a firearm entity or trade association.
- 1.40 **Foreign Adversaries.** Pursuant to Executive Order No GA-48, as amended and/or codified, Consultant certifies that it, and—if applicable—its holding companies or subsidiaries, are not:
- g. Listed in Section 889 of the 2019 National Defense Authorization Act (“NDAA”); or
 - h. Listed in Section 1260H of the 2021 NDAA; or
 - i. Owned by the government of a country on the U.S. Department of Commerce’s foreign adversaries list under 15 C.F.R. § 791.4; or
 - j. Controlled by any governing or regulatory body located in a country on the U.S. Department of Commerce’s foreign adversaries list under 15 C.F.R. § 791.4.
- 1.41 **Limitations.** THE PARTIES ARE AWARE THAT THERE MAY BE CONSTITUTIONAL AND STATUTORY LIMITATIONS ON THE AUTHORITY OF UNIVERSITY TO ENTER INTO CERTAIN TERMS AND CONDITIONS, INCLUDING TERMS AND CONDITIONS (IF ANY) RELATING TO LIENS ON UNIVERSITY’S PROPERTY; DISCLAIMERS AND LIMITATIONS OF WARRANTIES; DISCLAIMERS AND LIMITATIONS OF LIABILITY FOR DAMAGES; WAIVERS, DISCLAIMERS AND LIMITATIONS OF UNIVERSITY’S LEGAL RIGHTS, REMEDIES, REQUIREMENTS AND PROCESSES; LIMITATIONS OF



PERIODS TO BRING LEGAL ACTION; GRANTING CONTROL OF LITIGATION OR SETTLEMENT TO ANOTHER PARTY; LIABILITY FOR ACTS OR OMISSIONS OF THIRD PARTIES; PAYMENT OF ATTORNEYS' FEES; DISPUTE RESOLUTION; INDEMNITIES; ANY PROVISION THAT CREATES AN UNKNOWN OR UNFUNDED LIABILITY; AND CONFIDENTIALITY (COLLECTIVELY, THE "LIMITATIONS"), AND TERMS AND CONDITIONS RELATED TO THE LIMITATIONS WILL NOT BE BINDING ON UNIVERSITY EXCEPT TO THE EXTENT AUTHORIZED BY THE LAWS AND CONSTITUTION OF THE STATE OF TEXAS.

- 1.42 **Entire Agreement.** This Agreement contains the entire agreement of the Parties concerning the subject matter described herein and there are no other promises or conditions in any other agreement whether oral or written concerning the subject matter described herein. This Agreement supersedes any prior written or oral agreements between the Parties concerning the subject matter described herein.
- 1.43 **E-Signatures.** This Agreement may be executed in two or more counterparts, each of which are deemed to be an original as against any Party whose signature appears thereon, but all of which together shall constitute but one and the same instrument. Signatures to this Agreement transmitted by facsimile, by electronic mail in "portable document format" (".pdf"), or by any other electronic means which preserves the original graphic and pictorial appearance of the Agreement, have the same effect as physical delivery of the paper document bearing the original signature.

**Texas Tech University
Health Sciences Center**

Signature

Signature

Name

Name

Title

Title

Date

Date



**EXHIBIT “A”
Scope of Work**



BUSINESS ASSOCIATE AGREEMENT

This Business Associate Agreement (“Agreement”) is entered into on _____, between Texas Tech University Health Sciences Center (“University” or “Covered Entity”) and _____ (“Business Associate”). Both University and Business Associate are also referred to herein as “Party” or, collectively, “Parties.”

Background

- Business Associate will provide services, and Covered Entity will make available and/or transfer to Business Associate certain Protected Health Information/Electronic Protected Health Information or PHI (hereinafter defined), the Use and Disclosure (hereinafter defined) of which is subject to the federal Standards for Privacy of Individually Identifiable Health Information, located at 45 CFR Parts 160 and 164 (“Privacy Rule”), and the terms and conditions set forth in this Agreement.
- Covered Entity and Business Associate agree to comply with the rights and obligations of a Covered Entity and a Business Associate, respectively, as set forth in the HIPAA and other federal rules and regulations (including, without limitation, (i) the Privacy Rule; (ii) the Security Standards for the Protection of Electronic Protected Health Information at 45 CFR 164.302 et. Seq. (“Security Rule”); (iii) the Health Information Technology for Economic and Clinical Health Act, Title XIII of the American Recovery and Reinvestment Act of 2009 (“HITECH Act”); and (iv) federal regulations promulgated by the Federal Trade Commission (FTC), including but not limited to 16 CFR 681.2 (“Red Flag Rule”) with respect to the privacy and confidentiality of Protected Health Information contained in an Individual’s medical records.
- This Agreement is executed in conjunction with a service and/or purchase agreement between the Parties.

Agreement

Now therefore, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Covered Entity and Business Associate agree as follows.

Definitions

- 1.44 The following terms used in this Agreement shall have the same meaning as those terms found in the HIPAA Privacy Rule, HIPAA Security Rule and the HITECH Act: Business Associate, Covered Entity, Data Aggregation, Designated Record Set, Disclosure, Electronic Protected Health Information (hereinafter “EPHI”), Breach, Disclosure, Individual, Limited Data Set, Physical Safeguards, Administrative Safeguards, Privacy Officer, Privacy Rule, Protected Health Information (hereinafter “PHI”), Required by Law, Secretary, Security Incident, Security Officer, Security Rule, Subcontractor, Technical Safeguards, Unsecured Protected Health Information, Use.
- 1.45 All references to PHI in this Agreement shall be construed to include EPHI.
- 1.46 The term “HHS” means The U.S. Department of Health and Human Services.
- 1.47 The term “Breach of System Security” means the unauthorized acquisition of computerized data that compromises the security, confidentiality, or integrity of PHI maintained by a person, including data that is encrypted if the person accessing the data has the key required to decrypt the data. Good faith acquisition of PHI by an employee or agent of the Business Associate for the purposes of the Business Associate is not a breach of system security unless the employee or agent of the Business Associate uses or discloses the sensitive personal information in an unauthorized manner. Tex. Bus. & Com. Code § 521.053(a).
- 1.48 The term “Public Domain Email Address” means any email address provided by a public domain email provider and/or internet service provider including, but not limited to, iCloud Mail, Zoho, AOL, Outlook Live, Gmail, Hotmail, Yahoo, AT&T, without a current and existing Business Associate Agreement that meets the requirements at 45 C.F.R. § 164.314(a).

Permitted Uses and Disclosures of PHI by Business Associate



- 1.49 **Purpose Statement.** Except as otherwise limited in this Agreement, Business Associate may use or disclose PHI on behalf of, or to provide services to, University for the following purpose(s), and to the extent that such use or disclosure of PHI would not violate this Agreement or applicable federal or state laws and regulations if done by University. The BAA is associated with the following service agreement/contract or purchase order (PO):

HSC Contract/PO Number(s): _____

HSC Departments(s): _____

HSC Campus(es): _____

HSC Contact Info (Name/Tel #): _____

Description of Service: _____

- 1.50 **Specific Use and Disclosure Provisions.** Establish the permitted and required uses and disclosures of PHI by the Business Associate. The Business Associate Agreement may not authorize the Business Associate to use or further disclose the information in a manner that would violate the requirements of the Privacy Rule (45 CFR Part 160 and Part 164, Subparts A and E), if done by the Covered Entity, except that:

1.50.1 The BAA may permit the Business Associate to use PHI for the proper management and administration of the Business Associate or to carry out the legal responsibilities of the Business Associate.

1.50.2 The BAA may permit the Business Associate to disclose PHI to third parties for the proper management and administration of the Business Associate or to carry out the legal responsibilities of the Business Associate if: (i) the disclosure is required by law; or (ii) the Business Associate obtains reasonable assurance from the third party to whom the information is disclosed that it will be held confidentially and used or further disclosed only as required by law or for the purposes for which it was disclosed to the third party and the third party notifies the Business Associate of any instances of which it is aware in which the confidentiality of the PHI has been breached.

(45 CFR § 164.504(e)(2)(i)(A)-(B) and 45 CFR § 164.504(e)(4)(i)-(ii))

Business Associate may use or disclose PHI to report violations of law to appropriate federal and state authorities, consistent with 45 CFR 164.502(j)(1).

Obligations and Activities of Business Associate

- 1.51 Pursuant to the HITECH Act and implementing regulations, HIPAA Privacy Rule and Security Rule provisions and penalties shall be applicable to Business Associate to the same extent as University. *(45 CFR § 164.504(e)(2)(ii)(H)).*

- 1.52 Privacy Obligations and Activities of Business Associate:

1.52.1 Business Associate agrees to not use or further disclose PHI other than as permitted or required by this Agreement or as required by law. *(45 CFR § 164.504(e)(2)(ii)(A) and 45 CFR § 164.103).*

1.52.2 Business Associate agrees to use appropriate safeguards and comply, where applicable, with 45 CFR Part 160 and 164, Parts A and C with respect to electronic protected health information, to prevent use or disclosure of the information other than as provided for by its contract. *(45 CFR § 164.504(e)(2)(ii)(B)).*

1.52.3 Business Associate agrees to report to University any use or disclosure of the information not provided for by the Business Associate Agreement of which it becomes aware, including breaches of unsecured protected health information as required by 45 CFR § 164.410. *(45 CFR § 164.504(e)(2)(ii)(C)).*

1.52.4 Business Associate agrees, in accordance with 45 CFR §§ 164.502(e)(1)(ii) and 164.308(b)(2), to ensure that any subcontractors that create, receive, maintain, or transmit protected health information on behalf of the Business Associate agree to the same restrictions and conditions that apply to the Business Associate with respect to such information and agrees to comply with the applicable requirements of the Security Rule. *(45 CFR § 164.504(e)(2)(ii)(D) and 45 CFR § 164.314(a)(2)(i)(B)).*



- 1.52.5 Business Associate agrees to provide access to PHI in a Designated Record Set, at University's request and in the time and manner designated by University. Such access will be provided to University, or as directed by University, to an individual in order to meet the requirements under 45 CFR § 164.524 (access of individuals to PHI). *(45 CFR § 164.504(e)(2)(ii)(E)).*
- 1.52.6 Business Associate agrees to make available the protected health information for amendment and incorporate any amendments to PHI in accordance with 45 CFR § 164.526 *(45 CFR § 164.504(e)(2)(ii)(F)).*
- 1.52.7 Business Associate agrees to make available the information required to provide an accounting of disclosures in accordance with 45 CFR § 164.528, as amended by Section 13405(c) of the HITECH ACT. *(45 CFR § 164.504(e)(2)(ii)(G)).*
- 1.52.8 Business Associate agrees to make its internal practices, books, and records relating to the use and disclosure of protected health information received from, or created or received by the Business Associate on behalf of University available to the Secretary of the HHS for purposes of determining University's compliance with the Privacy Rule. *(45 CFR § 164.504(e)(2)(ii)(I)).*
- 1.52.9 Business Associate agrees to apply the minimum necessary standard and implement policies with respect to the use of limited data sets. *(45 CFR 160 and 45 CFR 164).*
- 1.52.10 Business Associate agrees to report to University any security incident of which it becomes aware, including any breach of unsecured protected health information as required by 45 CFR § 164.410 *(45 CFR § 164.314(a)(2)(i)(C)).*
- 1.52.11 Business Associate agrees to notify University's Privacy Officer and Security Officer, in writing, after Business Associate's discovery of any and all use and/or disclosure of the PHI that is not permitted or required by this Agreement of which Business Associate becomes aware within five (5) business days of the Business Associate's discovery of such unauthorized use and/or disclosure, including security incident(s), unintentional use or disclosure of EPHI, breach of data, or breach of system security.
- 1.52.11.1 Identification of the individual(s) whose PHI has been, or is reasonably believed by the Business Associate to have been, accessed, acquired, used, or disclosed during a breach;
- 1.52.11.2 Circumstances of the breach;
- 1.52.11.3 Persons who breached the PHI;
- 1.52.11.4 Date of the breach;
- 1.52.11.5 Date of the discovery;
- 1.52.11.6 Type of PHI involved (such as full name, Social Security number, date of birth, home address, account number, or medical record number);
- 1.52.11.7 Corrective action taken; and
- 1.52.11.8 Other additional information University requests.
- (45 CFR §§ 164.400-414)*
- 1.52.12 Business Associate will provide the notifications to University of any Breach as required by law and cooperate with University in any such notification with respect to required information for the notice to individuals. *(45 CFR §§ 164.400-414).*

1.53 Security Obligations and Activities of Business Associate

- 1.53.1 Business Associate may receive from University, or create or receive or maintain on behalf of University,



health information that is protected under applicable state and/or federal law, including without limitation, PHI. Business Associate agrees not to use or disclose (or permit the use or disclosure of) PHI in a manner that would violate the HIPAA Security Standards, the HITECH Act, or Texas law, including without limitation the provisions of Texas Health and Safety Code Chapters 181 and 182 as amended by HB 300 (82nd Legislature), effective September 1, 2012, in each case including any implementing regulations as applicable if the PHI were used or disclosed by University in the same manner.

- 1.53.2 Business Associate will use appropriate safeguards to prevent the use or disclosure of PHI other than as expressly permitted under this Agreement. Business Associate will implement administrative, physical, and technical safeguards that reasonably and appropriately protect the confidentiality, integrity, and availability of the PHI that it creates, receives, maintains, or transmits on behalf of Covered Entity. Business Associate acknowledges that the HITECH Act requires Business Associate to comply with 45 C.F.R. §§164.308, 164.310, 164.312 and 164.316 as if Business Associate were a Covered Entity, and Business Associate agrees to comply with these provisions of the Security Standards and all additional security provisions of the HITECH Act.
- 1.53.3 To the extent feasible, Business Associate will use commercially reasonable efforts to secure PHI through technology safeguards that render such PHI unusable, unreadable, and indecipherable to individuals unauthorized to acquire or otherwise have access to such PHI in accordance with HHS Guidance published at 74 Federal Register 19006 (April 17, 2009), or such later regulations or guidance promulgated by HHS or issued by the National Institute for Standards and Technology (“NIST”) concerning the protection of identifiable data such as PHI.
- 1.53.4 Business Associate agrees to implement reasonable systems for the discovery and prompt reporting to Covered Entity of any “breach” of “unsecured PHI” as those terms are defined by 45 C.F.R. §164.402.
- 1.53.5 Under no circumstances may Business Associate sell PHI in such a way as to violate Texas Health and Safety Code, Chapter 181.153, as amended by HB 300 (82nd Legislature), effective September 1, 2012, nor shall Business Associate use PHI for marketing purposes in such a manner as to violate Texas Health and Safety Code Section 181.152, or attempt to re-identify any information in violation of Texas Health and Safety Code Section 181.151, regardless of whether such action is on behalf of or permitted by the University. To the extent not otherwise prohibited in the Business Arrangements or by applicable law, use, creation, and disclosure of de-identified health information, as that term is defined in 45 CFR § 164.514, by Business Associate is permitted.
- 1.53.6 In addition to the foregoing and notwithstanding anything to the contrary herein, Business Associate will also comply with applicable state law, including without limitation, Section 521 Texas Business and Commerce Code, as amended by HB 300 (82nd Legislature), or such other laws or regulations as may later be amended or adopted. In the event of any conflict between the HIPAA Security Rule, the HITECH ACT, Texas laws, and any other later amended or adopted laws or regulations, the most stringent requirements shall govern.
- 1.53.7 Business Associate agrees to mitigate, to the extent commercially practical, harmful effects that are known to Business Associate and is the result of a use or disclosure of PHI by Business Associate in violation of this Agreement.
- 1.53.8 Business Associate agree to make its internal practices, books, and records relating to the use and disclosure of protected health information received from, or created or received by the Business Associate on behalf of University, available to University for purposes of vendor risk assessment and to the Secretary of the HHS for purposes of determining Business Associate's and University's compliance with the Security Rule.
- 1.53.9 Business Associate agrees that it will provide training to all persons who act on its behalf, including employees, agents, and others in its workforce who have access to PHI, on policies and procedures with respect to the uses and disclosures of PHI so as to carry out their function within the Business Associate.



- 1.53.10 Business Associate agrees that it will not access, store, share, transmit, receive, or disclose University's PHI through any form of public domain email address.
- 1.53.11 Nothing in this BAA shall permit the Business Associate to access, store, share, maintain, transmit, use, or disclose PHI in any form via any medium with any entity or person, including the Business Associate's employees and Subcontractors, beyond the boundaries and jurisdiction of the United States without express written authorization from University.

1.54 Other Obligations and Activities of Business Associate

- 1.54.1 To the extent Business Associate is a Creditor as defined in the FTC Red Flag Rules, as may be amended (16 CFR Part 681) with respect to its use and disclosure of PHI under this Agreement, Business Associate agrees that it will comply with the FTC Red Flag Rules, including, but not limited to a written program to prevent, detect, and mitigate identity theft.

Electronic Transactions and Code Set Standards for Business Associate

- 1.55 If Business Associate conducts any Standard Transaction for, or on behalf of, the Covered Entity, Business Associate shall comply, and shall require any subcontractor or agent conducting such Standard Transaction to comply, with each applicable requirement of 45 CFR Part 162.923(c).
- 1.56 In accordance with 45 CFR Part 162.915, Business Associate shall not enter into, or permit its subcontractors or agents to enter into, any agreement in connection with the conduct of Standard Transaction for, or on behalf of, University that:
- 1.56.1 Change the definition, data condition or use of a data element or segment in a standard;
- 1.56.2 Add any data elements or segments to the maximum defined data set;
- 1.56.3 Use any code or data elements that are either marked "not used" in the standard's implementation specification or are not in the standard's implementation specification(s); or
- 1.56.4 Change the meaning or intent of the standard's implementation specification(s).

Notice of Privacy Practices

- 1.57 University agrees to make available its current HIPAA Notice of Privacy Practices at https://hscweb.ttuhscc.edu/compliance/documents/hipaa/forms/NPP_2016.pdf. Business Associate is responsible to review and comply with the uses and disclosures as set forth by 45 CFR 164.520.
- 1.58 University shall provide Business Associate with any changes in, or revocation of, permission by an Individual to use or disclose PHI given to University, if such changes or revocation affect Business Associate's permitted or required uses and disclosures PHI.

Permissible Requests by University

- 1.59 University shall not request Business Associate to use or disclose PHI in any manner that would not be permissible under the Privacy Rule, the Security Rule, the HITECH Act, or applicable state law if done by University. (45 CFR 164.504(e)(2)(i)).
- 1.60 University may request Business Associate to provide data aggregation services relating to the health care operations of University. (45 CFR 164.504(e)(2)(i)(B)).
- 1.61 University may use protected health information to create information that is not individually identifiable health information or disclose protected health information to Business Associate for such purpose of this Agreement, whether or not the de-identified information is to be used by University. (45 CFR § 164.502(d)(1)).



- 1.62 University may use protected health information to create a limited data set that meets the requirements of 45 CFR § 514(e)(2) or disclose protected health information to Business Associate for such purpose of this Agreement, whether or not the limited data set is to be used by University. (45 CFR § 164.514(e)(3)(ii)).

Term and Termination

- 1.63 **Term.** The Term of this Agreement shall be effective as of the date set forth on page one of this Agreement and continue until August 31 of that fiscal year.

- 1.63.1 Unless terminated, this Agreement shall be automatically renewed for one year periods starting September 1 of each year, so as not to terminate until all of the PHI provided by University to Business Associate, or created or received by Business Associate on behalf of University, is destroyed or returned to University, or, if it is infeasible to return or destroy PHI, protections are extended to such information, in accordance with the termination provisions in this Section.

- 1.64 **Termination for Cause.**

- 1.64.1 Upon University's knowledge of a breach by Business Associate ("Breaching Party"), in coordination with the Business Associate, University may investigate the breach and provide an opportunity for the Business Associate to cure the breach or end the violation. If Business Associate does not cure the breach or end the violation within the time specified by University, University may terminate this Agreement and any agreement identified in Section 2.1, upon written notice.

- 1.64.2 Either Party may immediately terminate this Agreement upon written notice, if the other Party has breached a material term of this Agreement and cure of the breach is not possible. (45 CFR § 164.504(e)(2)(iii)).

- 1.64.3 If neither termination nor cure is feasible, the non-breaching Party shall report the violation to the Secretary of the HHS.

- 1.65 **Effect of Termination.** Upon termination of this Agreement, Business Associate agrees:

- 1.65.1 To return to University or to destroy all PHI received from University, or created or received by Business Associate on behalf of University that the Business Associate or its subcontractors still maintains in any form and retain no copies of such information. Business Associate agrees that all paper, film, or other hard copy media shall be shredded or destroyed such that it may not be reconstructed, and PHI shall be purged or destroyed concurrent with NIST Guidelines for Media Sanitization (NIST SP 800-88); or

- 1.65.2 In the case where return or destruction of PHI is not feasible to return or destroy, extend the protections of this Agreement to the information and limit further uses and disclosures to those purposes that make the return or destruction of the information infeasible. This provision shall apply to PHI that is in the possession of subcontractors or agents of Business Associate. (45 CFR §§ 164.504(e)(2)(ii)(J) and 164.504(e)(5)).

In the event that Business Associate determines that returning or destroying the PHI is not feasible, Business Associate shall provide to University notification of the conditions that make return or destruction infeasible.

Disclaimer

- 1.66 UNIVERSITY MAKES NO WARRANTY OR REPRESENTATION THAT COMPLIANCE BY BUSINESS ASSOCIATE WITH THIS AGREEMENT OR THE HIPAA OR HITECH REGULATIONS WILL BE ADEQUATE OR SATISFACTORY FOR BUSINESS ASSOCIATE'S OWN PURPOSES OR THAT ANY INFORMATION IN THE POSSESSION OF BUSINESS ASSOCIATE OR SUBJECT TO ITS CONTROL, OR TRANSMITTED OR RECEIVED BY THE BUSINESS ASSOCIATE, IS OR WILL BE SECURE FROM UNAUTHORIZED USE OR DISCLOSURE. BUSINESS ASSOCIATE IS SOLELY RESPONSIBLE FOR ALL DECISIONS MADE BY BUSINESS ASSOCIATE REGARDING THE SAFEGUARDING OF PHI OR EPHI.



Indemnification/Insurance

- 1.67 Business Associate will indemnify and hold harmless University and University's employees, subcontractors, agents, or other members of University's workforce against all actual and direct losses, liabilities, costs, and damages suffered by the University and all liability to third parties arising from or in connection with any security incidents or breach of this Agreement or of any warranty hereunder or from any negligence or wrongful acts or omissions, including failure to perform its obligations under the Privacy Rule, the Security Rule, or the HITECH Act by Business Associate or its employees, subcontractors, agents, or other members of Business Associate's workforce.
- 1.68 Business Associate represents and warrants that it maintains a policy or program of insurance at levels sufficient to support the Business Associate's indemnification obligations and duties assumed under this Agreement. Upon request, Business Associate shall provide evidence of its insurance.

General Provisions

- 1.69 **Regulatory References.** A reference in this Agreement to HIPAA, HITECH, or a cite or section in the Privacy Rule or Security Rule means the section as is in effect or as may be amended.
- 1.70 **Amendment.** The Parties agree to take such action as is necessary to amend this Agreement from time to time as is necessary for University to comply with the requirements of applicable federal and state laws and regulations (including, but not limited to, the Privacy Rule, Security Rule, HIPAA, and HITECH, and as these may be amended). Any amendment to this Agreement shall be in writing and attached hereto.
- 1.71 **Interpretation.** Any ambiguity in this Agreement shall be resolved in favor of a meaning that permits University to comply with the federal and state laws referenced in Article 10.2 above.
- 1.72 **Survival.** The obligations of Business Associate under this Agreement shall survive the expiration, termination, or cancellation of this Agreement.
- 1.73 **Assignment.** Business Associate shall not have the right to assign or transfer its rights and obligations under this Agreement to any third party without prior written consent of University.
- 1.74 **Force Majeure.** "Event of Force Majeure" means an event beyond the control of Business Associate or University which prevents or makes a party's compliance with any of its obligations under this Agreement illegal or impracticable, including but not limited to: act of God (including, without limitation, fire, explosion, earthquake, tornado, drought, and flood); war, act or threats of terrorism, hostilities (whether or not war be declared), invasion, act of enemies, mobilization, requisition, or embargo; rebellion, insurrection, military or usurped power, or civil war; contamination or destruction from any nuclear, chemical, or biological event; riot, commotion, strikes, go slows, lock outs, or disorder; epidemic, pandemic, viral outbreak, or health crisis; or directive of governmental authority. No party will be considered in breach of this Agreement to the extent that performance of their respective obligations is prevented or made illegal or impracticable by an Event of Force Majeure that arises during the term (or after execution of the Agreement but prior to the beginning of the term). A party asserting an Event of Force Majeure hereunder ("Affected Party") will give reasonable notice to the other party of an Event of Force Majeure upon it being foreseen by, or becoming known to, Affected Party. In the event of an Event of Force Majeure, Affected Party will endeavor to continue to perform its obligations under the Agreement only so far as reasonably practicable.
- 1.75 **Severability.** If any term or provision of this Agreement is held to be invalid for any reason, the invalidity of that section shall not affect the validity of any other section of this Agreement, provided that any invalid provision is not material to the overall purpose and operation of this Agreement, and the remaining provisions of this Agreement shall continue in full force and effect and shall in no way be affected, impaired, or invalidated.
- 1.76 **Binding Effect.** This Agreement shall be binding upon, and shall extend to the benefit of, the Parties hereto and



their respective permitted successors and assigns.

- 1.77 **Execution.** This Agreement may be executed in multiple counterparts, each of which shall constitute an original and all of which shall constitute but one Agreement.
- 1.78 **Independent Contractor.** Nothing in this Agreement is intended nor shall be construed to create an employer/employee relationship between University and Business Associate. The sole interest and responsibility of the Parties is to perform services and obligations under this Agreement as independent contractors in a competent, efficient, and satisfactory manner.
- 1.79 **Venue; Governing Law.** This Agreement is governed by and construed and enforced in accordance with the laws of the State of Texas. Pursuant to Section 109.005 of the Texas Education Code, the County in which University's Chief Executive Officer is located shall be the sole proper place of venue for any legal action or proceeding arising out of this Contract or the enforcement of any provision in this Agreement.
- 1.80 **Limitations.** THE PARTIES ARE AWARE THAT THERE MAY BE CONSTITUTIONAL AND STATUTORY LIMITATIONS ON THE AUTHORITY OF UNIVERSITY TO ENTER INTO CERTAIN TERMS AND CONDITIONS, INCLUDING TERMS AND CONDITIONS (IF ANY) RELATING TO LIENS ON UNIVERSITY'S PROPERTY; DISCLAIMERS AND LIMITATIONS OF WARRANTIES; DISCLAIMERS AND LIMITATIONS OF LIABILITY FOR DAMAGES; WAIVERS, DISCLAIMERS AND LIMITATIONS OF UNIVERSITY'S LEGAL RIGHTS, REMEDIES, REQUIREMENTS AND PROCESSES; LIMITATIONS OF PERIODS TO BRING LEGAL ACTION; GRANTING CONTROL OF LITIGATION OR SETTLEMENT TO ANOTHER PARTY; LIABILITY FOR ACTS OR OMISSIONS OF THIRD PARTIES; PAYMENT OF ATTORNEYS' FEES; DISPUTE RESOLUTION; INDEMNITIES; ANY PROVISION THAT CREATES AN UNKNOWN OR UNFUNDED LIABILITY; AND CONFIDENTIALITY (COLLECTIVELY, THE "LIMITATIONS"), AND TERMS AND CONDITIONS RELATED TO THE LIMITATIONS WILL NOT BE BINDING ON UNIVERSITY EXCEPT TO THE EXTENT AUTHORIZED BY THE LAWS AND CONSTITUTION OF THE STATE OF TEXAS.
- 1.81 **Notices.** Any notice or notification required to be provided under this Agreement by either Party shall be made to the following individuals. The person(s) executing this Agreement on behalf of the Parties, or representing themselves as executing this Agreement on behalf of a Party, warrant and guarantee that each has been duly authorized by the appropriate Party to execute this Agreement on behalf of the Party and to validly and legally bind the Party to all of its terms, performances, and provisions.

TTUHSC (Covered Entity):

TTUHSC Institutional Privacy Officer
3601 4th Street, STOP 8165
Lubbock, Texas 79430-8165
(806) 743-4007

TTUHSC Information Security Officer
3601 4th Street, STOP 9083
Lubbock, Texas 79430-9083
(806) 743-7103



Business Associate:

Name of Business: _____

Attention: _____

Title: _____

Address: _____

Phone: _____

Email: _____

Texas Tech University
Health Sciences Center

***[INSERT FULL LEGAL NAME OF BUSINESS
ASSOCIATE]***

Signature_____
Signature_____
Printed Name_____
Printed Name_____
Title_____
Title_____
Date_____
Date

APPENDIX B EXECUTION OF OFFER

THIS EXECUTION OF OFFER MUST BE COMPLETED, SIGNED AND RETURNED WITH PROPOSER'S PROPOSAL. FAILURE TO COMPLETE, SIGN AND RETURN THIS EXECUTION OF OFFER WITH THE PROPOSER'S PROPOSAL MAY RESULT IN THE REJECTION OF THE PROPOSAL.

- 1.1** *By signature hereon, Proposer represents and warrants the following:*
- 1.1.1 Proposer acknowledges and agrees that (1) this RFP is a solicitation for a proposal and is not a contract or an offer to contract; (2) the submission of a proposal by Proposer in response to this RFP will not create a contract between TTUHSC and Proposer; (3) TTUHSC has made no representation or warranty, written or oral, that one or more contracts with TTUHSC will be awarded under this RFP; and (4) Proposer will bear, as its sole risk and responsibility, any cost arising from Proposer's preparation of a response to this RFP.
 - 1.1.2 Proposer is a reputable company that is lawfully and regularly engaged in providing the Services.
 - 1.1.3 Proposer has the necessary experience, knowledge, abilities, skills, and resources to provide the Services.
 - 1.1.4 Proposer is aware of, is fully informed about, and is in full compliance with all applicable federal, state and local laws, rules, regulations and ordinances.
 - 1.1.5 Proposer understands (i) the requirements and specifications set forth in this RFP and (ii) the terms and conditions set forth in the Agreement under which Proposer will be required to operate.
 - 1.1.6 If selected by TTUHSC, Proposer will not delegate any of its duties or responsibilities under this RFP or the Agreement to any sub-contractor, except as expressly provided in the Agreement.
 - 1.1.7 If selected by TTUHSC, Proposer will maintain any insurance coverage as required by the Agreement during the term thereof.
 - 1.1.8 All statements, information and representations prepared and submitted in response to this RFP are current, complete, true and accurate. Proposer acknowledges that TTUHSC will rely on such statements, information and representations in selecting Contractor. If selected by TTUHSC, Proposer will notify TTUHSC immediately of any material change in any matters with regard to which Proposer has made a statement or representation or provided information.
 - 1.1.9 PROPOSER WILL DEFEND WITH COUNSEL APPROVED BY TTUHSC, INDEMNIFY, AND HOLD HARMLESS TTUHSC, THE TEXAS TECH UNIVERSITY SYSTEM, THE STATE OF TEXAS, AND ALL OF THEIR REGENTS, OFFICERS, AGENTS AND EMPLOYEES, FROM AND AGAINST ALL ACTIONS, SUITS, DEMANDS, COSTS, DAMAGES, LIABILITIES AND OTHER CLAIMS OF ANY NATURE, KIND OR DESCRIPTION, INCLUDING REASONABLE ATTORNEYS' FEES INCURRED IN INVESTIGATING, DEFENDING OR SETTLING ANY OF THE FOREGOING, ARISING OUT OF, CONNECTED WITH, OR RESULTING FROM ANY NEGLIGENT ACTS OR OMISSIONS OR WILLFUL MISCONDUCT OF PROPOSER OR ANY AGENT, EMPLOYEE, SUBCONTRACTOR, OR SUPPLIER OF PROPOSER IN THE EXECUTION OR PERFORMANCE OF ANY CONTRACT OR AGREEMENT RESULTING FROM THIS RFP.
 - 1.1.10 Pursuant to Sections 2107.008 and 2252.903, *Government Code*, any payments owing to Proposer under any contract or agreement resulting from this RFP may be applied directly to any debt or delinquency that Proposer owes the State of Texas or any agency of the State of Texas regardless of when it arises, until such debt or delinquency is paid in full.
- 1.2** By signature hereon, Proposer offers and agrees to furnish the Services to TTUHSC and comply with all terms, conditions, requirements and specifications set forth in this RFP.
- 1.3** By signature hereon, Proposer affirms that it has not given or offered to give, nor does Proposer intend to give at any time hereafter, any economic opportunity, future employment, gift, loan, gratuity, special discount, trip, favor or service to a public servant in connection with its submitted proposal. Failure to sign this Execution of Offer, or signing with a false statement, may void the submitted proposal or any resulting contracts, and the Proposer may be removed from all proposal lists at TTUHSC.
- 1.4** By signature hereon, Proposer certifies that it is not currently delinquent in the payment of any taxes due under Chapter 171, *Tax Code*, or that Proposer is exempt from the payment of those taxes, or that Proposer is an out-of-state taxable entity that is not subject to those taxes, whichever is applicable. A false certification will be deemed a material breach of any resulting contract or agreement and, at TTUHSC's option, may result in termination of any resulting contract or agreement.
- 1.5** By signature hereon, Proposer hereby certifies that neither Proposer nor any firm, corporation, partnership or institution represented by Proposer, or anyone acting for such firm, corporation or institution, has violated the antitrust laws of the State of Texas, codified in Section 15.01, et seq., *Business and Commerce Code*, or the Federal antitrust laws, nor communicated directly or indirectly the proposal made to any competitor or any other person engaged in such line of business.
- 1.6** By signature hereon, Proposer certifies that the individual signing this document and the documents made a part of this RFP, is authorized to sign such documents on behalf of Proposer and to bind Proposer under any agreements and other contractual arrangements that may result from the submission of Proposer's proposal.



1.7 By signature hereon, Proposer certifies as follows:

"Under Section 231.006, *Family Code*, relating to child support, Proposer certifies that the individual or business entity named in the Proposer's proposal is not ineligible to receive the specified contract award and acknowledges that any agreements or other contractual arrangements resulting from this RFP may be terminated if this certification is inaccurate."

1.8 By signature hereon, Proposer certifies that (i) no relationship, whether by blood, marriage, business association, capital funding agreement or by any other such kinship or connection exists between the owner of any Proposer that is a sole proprietorship, the officers or directors of any Proposer that is a corporation, the partners of any Proposer that is a partnership, the joint venturers of any Proposer that is a joint venture or the members or managers of any Proposer that is a limited liability company, on one hand, and an employee of any component of The Texas Tech University System, on the other hand, other than the relationships which have been previously disclosed to TTUHSC in writing; (ii) Proposer has not been an employee of any component institution of The Texas Tech University System within the immediate twelve (12) months prior to the Submittal Deadline; and (iii) no person who, in the past four (4) years served as an executive of a state agency was involved with or has any interest in Proposer's proposal or any contract resulting from this RFP (ref. Section 669.003, *Government Code*). All disclosures by Proposer in connection with this certification will be subject to administrative review and approval before TTUHSC enters into a contract or agreement with Proposer.

1.9 By signature hereon, Proposer certifies that in accordance with Section 2155.004, *Government Code*, no compensation has been received for its participation in the preparation of the requirements or specifications for this RFP. In addition, Proposer certifies that an award of a contract to Proposer will not violate Section 2155.006, *Government Code*, prohibiting TTUHSC from entering into a contract that involves financial participation by a person who, during the previous five years, has been convicted of violating federal law or assessed a penalty in a federal civil or administrative enforcement action in connection with a contract awarded by the federal government for relief, recovery, or reconstruction efforts as a result of Hurricane Rita, Hurricane Katrina, or any other disaster occurring after September 24, 2005. Pursuant to Sections 2155.004 and 2155.006, *Government Code*, Proposer certifies that Proposer is not ineligible to receive the award of or payments under the Agreement and acknowledges that the Agreement may be terminated and payment withheld if these certifications are inaccurate.

1.10 By signature hereon, Proposer certifies its compliance with all federal laws and regulations pertaining to Equal Employment Opportunities and Affirmative Action.

1.11 By signature hereon, Proposer represents and warrants that all products and services offered to TTUHSC in response to this RFP meet or exceed the safety standards established and promulgated under the Federal Occupational Safety and Health Law (Public Law 91-596) and the *Texas Hazard Communication Act*, Chapter 502, *Health and Safety Code*, and all related regulations in effect or proposed as of the date of this RFP.

1.12 Proposer will and has disclosed, as part of its proposal, any exceptions to the certifications stated in this Execution of Offer. All such disclosures will be subject to administrative review and approval prior to the time TTUHSC makes an award or enters into any contract or agreement with Proposer.

1.13 Proposer certifies it is not prohibited under Tex. Gov't Code §2261.252(b) and agrees that if Proposer's certification is or becomes untrue, any resulting Agreement is void, and Proposer will not seek and waives its right to seek any legal or equitable remedy for past or future performance under any resulting Agreement, including damages, whether under breach of contract, unjust enrichment, or any other legal theory; specific performance; and injunctive relief.

NOTICE: WITH FEW EXCEPTIONS, INDIVIDUALS ARE ENTITLED ON REQUEST TO BE INFORMED ABOUT THE INFORMATION THAT GOVERNMENTAL BODIES OF THE STATE OF TEXAS COLLECT ABOUT SUCH INDIVIDUALS. UNDER SECTIONS 552.021 AND 552.023, *GOVERNMENT CODE*, INDIVIDUALS ARE ENTITLED TO RECEIVE AND REVIEW SUCH INFORMATION. UNDER SECTION 559.004, *GOVERNMENT CODE*, INDIVIDUALS ARE ENTITLED TO HAVE GOVERNMENTAL BODIES OF THE STATE OF TEXAS CORRECT INFORMATION ABOUT SUCH INDIVIDUALS THAT IS INCORRECT.

Submitted and Certified By:

(Proposer Institution's Name)

(Signature of Duly Authorized Representative)

(Printed Name/Title)

(Date Signed)

(Proposer's Street Address)

(City, State, Zip Code)

(Telephone Number)



APPENDIX C

VetHUB SUBCONTRACTING PLAN

Please visit the following link to fill out and print the required VetHUB Subcontracting Plan.

General Reference Documents

<http://www.fiscal.ttuhsc.edu/purchasing/hub/resources.aspx>

VetHUB Subcontracting Plan

<https://comptroller.texas.gov/purchasing/docs/hub-forms/hsp-allfms.pdf>



APPENDIX D
ADDENDA CHECKLIST

Proposal of: _____
(Proposer Company Name)

To: Texas Tech University Health Sciences Center

RFP No.: RFP 739-SL3821039

The undersigned Proposer hereby acknowledges receipt of the following Addenda to the captioned RFP (initial if applicable).

No. 1 _____ No. 2 _____ No. 3 _____ No. 4 _____ No. 5 _____

Respectfully submitted,

By: _____
(Authorized Signature)

Name: _____

Title: _____

Date: _____



APPENDIX E TTUHSC VENDOR INFORMATION

For information on TTUHSC purchase processes, please consider visiting the following:

<http://www.fiscal.ttuhscc.edu/purchasing/vendors.aspx>

Campus maps are available at the following link:

<https://www.ttuhscc.edu/maps-directions/default.aspx#>

